

Justice K.S. Puttaswamy (Retd.) v. Union of India

Citation: (2017) 10 SCC 1 | Court: Supreme Court | Year: 2017

Coram: 9-Judge Constitution Bench (Unanimous) | Subject: Constitutional Law | Provisions: Article 21 & Part III

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The Right to Privacy is an intrinsic and fundamental facet of the Right to Life and Personal Liberty under Article 21, protected across the entire spectrum of Part III freedoms. State intrusion into privacy must satisfy the rigorous 3-Prong Proportionality Test.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Article 21 & Part III. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Article 21 & Part III.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Unanimously overruled M.P. Sharma (1954) and Kharak Singh (1962). Formulated the 3-Prong Proportionality Test: Legality (statutory law), Legitimate State Goal, and Proportionality (least restrictive means).

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Established privacy as an inalienable fundamental right under Article 21.
- â€ Formulated the 3-prong proportionality test (Legality, Need, Proportionality).
- â€ Laid the constitutional foundation for data protection and digital rights in India.